

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Scott Carlton	Team: Squad #16	CCRB Case #: 201802654	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/04/2018 3:30 PM	Location of Incident: Guy R. Brewer Boulevard and 132nd Avenue	18 Mo. SOL 10/4/2019	Precinct: 113		
Date/Time CV Reported Thu, 04/05/2018 8:56 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/05/2018 8:56 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kyle Bradley	30772	945861	113 PCT
2. POM Andre Edwards	24278	953837	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Andre Edwards	Abuse: Police Officer Andre Edwards refused to provide his name to § 87(2)(b)	A . Unsubstantiated
B . POM Kyle Bradley	Abuse: Police Officer Kyle Bradley refused to provide his name to § 87(2)(b)	B . Unsubstantiated
C . POM Andre Edwards	Abuse: Police Officer Andre Edwards threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . POM Andre Edwards	Abuse: Police Officer Andre Edwards stopped § 87(2)(b)	D . Unsubstantiated
E . POM Kyle Bradley	Abuse: Police Officer Kyle Bradley stopped § 87(2)(b)	E . Unsubstantiated
F . POM Andre Edwards	Abuse: Police Officer Andre Edwards searched § 87(2)(b)	F . Unsubstantiated

Case Summary

On April 5, 2018, § 87(2)(b) made the following complaint by telephone to the Civilian Complaint Review Board (CCRB) (Board Review 01).

On April 4, 2018, at approximately 3:30 p.m., § 87(2)(b) walked on the sidewalk alongside the Rochdale Village residential complex on Guy R. Brewer Boulevard in the vicinity of the intersection with 132nd Avenue in Queens when Police Officer André Edwards, with his partner, Police Officer Kyle Bradley, in the front passenger seat, slowed his police vehicle down to drive alongside § 87(2)(b). § 87(2)(b) asked for the officers' names through the open front passenger window of the vehicle. Neither officer provided their name (**Allegation A: Abuse of Authority, unsubstantiated; Allegation B: Abuse of Authority, unsubstantiated**). Police Officer Edwards responded, "Oh, you want us to give you our names? We should lock him up" (**Allegation C: Abuse of Authority, unsubstantiated**). Police Officer Edwards stopped the police vehicle at the side of the road. As Police Officer Edwards and Police Officer Bradley approached § 87(2)(b) on foot, § 87(2)(b) asked for the names of both officers. Neither officer provided their names to § 87(2)(b) (**Allegation A, continued; Allegation B, continued**). Police Officer Edwards replied, "Oh you want me to lock you up so can have my name?" (**Allegation C, continued**). Police Officer Edwards and Police Officer Bradley stopped § 87(2)(b) (**Allegation D, Abuse of Authority, unsubstantiated; Allegation E, Abuse of Authority, unsubstantiated**). Police Officer Edwards entered all of § 87(2)(b)'s pockets with his hand (**Allegation F, Abuse of Authority, unsubstantiated**). Police Officer Edwards and Police Officer Bradley returned to their vehicle and drove away. No summonses were issued or arrests made.

The video footage obtained by the investigation did not depict the incident of occurrence.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer André Edwards refused to provide his name to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Kyle Bradley refused to provide his name to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) identified Police Officer Edwards and Police Officer Bradley to the CCRB as he was able to read the officers' names from their badges when they approached him closely. The roll call confirmed that the officers were on duty and assigned to the area in which the incident allegedly occurred (Board Review 02)

In his verified statement at the CCRB, § 87(2)(b) stated that he saw Police Officer Edwards point at him from within his police vehicle from approximately a tenth of a mile south from the incident of occurrence on Guy R. Brewer Boulevard (Board Review 03). § 87(2)(b) did not know the officers, who proceeded to make a U-turn and, he believed, circle around a block

southwest of Guy R. Brewer Boulevard in order to pursue him. Police Officer Edwards slowed down his car alongside § 87(2)(b) who walked northbound on the sidewalk to avoid the officers. Police Officer Edwards referred to § 87(2)(b) as § 87(2)(b) through the lowered window. § 87(2)(b) stated to the officers in the car, “What is your name? Can I get your name?” Police Officer Edwards replied, “Oh, you want us to give you our names? We should lock him up.” Police Officer Edwards stopped the vehicle along the side of Guy R. Brewer Boulevard. Police Officer Edwards and Police Officer Bradley exited the vehicle and walked toward § 87(2)(b) who was on the sidewalk. § 87(2)(b) stopped walking and asked the officers for their names. Police Officer Edwards said, “Oh, you want me to lock you up so you can have my name?” The officers did not provide their names.

Police Officer Edwards stated that § 87(2)(b) was walking on a sidewalk along the perimeter of Rochdale Village, a large community development in which § 87(2)(b) does not reside and for which Police Officer Edwards and Police Officer Bradley served as Neighborhood Coordinating Officers (Board Review 04). In this capacity, they were regularly present at neighborhood meetings and their names were posted on flyers around the neighborhood. Police Officer Edwards and Police Officer Bradley knew § 87(2)(b) was known to frequently enter the Rochdale Village complex, a city-subsidized Mitchell-Lama development, on multiple occasions, and that he was prohibited from the grounds. § 87(2)(b) had received a trespassing affidavit in relation to one of several arrests on the property, and a Rochdale Public Safety employee had an order of protection against § 87(2)(b) who she alleged had assaulted her, and which disallowed him from the premises. Police Officer Edwards believed the order of protection was still in effect. Police Officer Edwards had personally been involved in one arrest of § 87(2)(b) on Rochdale Village premises a year and a half prior in which he had trespassed and broken into a facility. Had § 87(2)(b) entered the Rochdale Village premises, he could have been arrested for criminal trespassing.

On April 4, 2018, Police Officer Edwards slowed down the police vehicle as he drove alongside § 87(2)(b). Through the open front passenger side window, Police Officer Edwards said, § 87(2)(b) I need you to stay out of Rochdale, you know you don’t belong there.” Police Officer Edwards did not recall if § 87(2)(b) asked for his name or the name of Police Officer Bradley, but was certain that § 87(2)(b) already knew their names from previous interactions.

§ 87(2)(g)
§ 87(2)(b) Police Officer Bradley immediately recognized § 87(2)(b) on the sidewalk because § 87(2)(b) spent a lot of time in the neighborhood. Police Officer Bradley would see § 87(2)(b) approximately once a week, and had interacted with him before. Police Officer Bradley was familiar with § 87(2)(b) “on a first-name basis.” As Police Officer Edwards slowed the car beside § 87(2)(b) Police Officer Bradley did not recall if he or Police Officer Edwards had said, “Hey § 87(2)(b) stay out of Rochdale,” though one of them said this. § 87(2)(b) did not ask for his name or that Police Officer Edwards, as he already knew them.

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A** and **B** be closed as unsubstantiated.

Allegation (C) Abuse of Authority: Police Officer André Edwards threatened to arrest

§ 87(2)(b)

§ 87(2)(b) and Police Officer Edwards agreed that Police Officer Edwards spoke of arrest,

§ 87(2)(g)

As discussed in regard to Allegations A and B, § 87(2)(b) stated that Police Officer Edwards said, in response to § 87(2)(b)'s first request for the names of the officers, "Oh, you want us to give you our names? We should lock him up" (Board Review 03). When § 87(2)(b) asked for the officers' names a second time, Police Officer Edwards said, "Oh, you want me to lock you up so you can have my name?"

Police Officer Edwards stated that, as he drove alongside § 87(2)(b) and told him to stay out of Rochdale Village, he said to § 87(2)(b) "If I catch you in Rochdale, you will be arrested" (Board Review 04). Police Officer Bradley made a statement which echoed the same sentiment, though Police Officer Edwards did not recall what he said specifically. Police Officer Edwards' tone was authoritative, straightforward and stern, but not disrespectful. Had § 87(2)(b) entered the Rochdale Village premises, he could have been arrested for criminal trespassing. Police Officer Edwards did not explain to § 87(2)(b) why he could have been arrested as he only passed by § 87(2)(b) briefly in the police vehicle, but § 87(2)(b) already knew why he could be arrested.

Police Officer Bradley did not recall that he or Police Officer Edwards mentioned potential repercussions that § 87(2)(b) would face if he entered Rochdale Village during the encounter (Board Review 05). Neither he nor Police Officer Edwards spoke of "locking" § 87(2)(b) up.

On May 17, 2018, § 87(2)(b) a § 87(2)(b), stated by phone that non-residents cannot enter Rochdale Village and will be issued a summons if caught trespassing.

NY CLS Penal Law Section 140.10 states that a person is guilty of criminal trespass in the third degree when he knowingly enters and remains unlawfully upon a property that constitutes a public housing project, whether that be in violation of conspicuously posted rules and regulations governing entry or in violation of a personally communicated request to leave the premises from a housing safety officer (Board Review 06). Patrol Guide Procedure 208-01 states that an arrest may be made by a police officer without a warrant when they have reasonable cause to believe an offense was committed in their presence (Board Review 07).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

. It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: Police Officer André Edwards stopped § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Kyle Bradley stopped § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer André Edwards searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that, when Police Officer Edwards and Police Officer Bradley approached him on the sidewalk, Police Officer Edwards stood directly in front of § 87(2)(b) while Police Officer Bradley stood to § 87(2)(b)'s right side (Board Review 03). § 87(2)(b) felt that he was blocked and could not walk away. The only direction he could have walked was back where he had walked from. Additionally, § 87(2)(b) felt he could not walk away because when he had walked northbound on Guy R. Brewer Boulevard, the officers had pursued him. Without a word or an explanation as to why § 87(2)(b) had been stopped, Police Officer Edwards entered each of § 87(2)(b)'s pockets—his two front pant pockets, two back pant pockets, two pockets on the inside of his jacket, and a pocket on the outside of the jacket at chest level—with a hand. Police Officer Edwards did not remove any items from § 87(2)(b)'s pockets. Police Officer Edwards did not speak to § 87(2)(b) as he entered his pockets. Police Officer Bradley, who had been standing by silently, said something to Police Officer Edwards that § 87(2)(b) could not hear, after which Police Officer Edwards and Police Officer Bradley returned to their police vehicle and drove away without a word.

Police Officer Edwards said that he never stopped the police vehicle on the side of the road (Board Review 04), but rather gathered speed in the vehicle immediately after he told § 87(2)(b) he would be arrested if he was caught in Rochdale Village. Police Officer Edwards proceeded to drive at a “normal” speed down Guy R. Brewer Boulevard as there was traffic behind him. The entire interaction lasted 10 to 15 seconds. Neither Police Officer Edwards nor Police Officer Bradley exited the police vehicle. Police Officer Edwards did not make a memo book entry in regard to the incident because he did not stop § 87(2)(b).

§ 87(2)(g)

Police Officer Bradley stated the interaction with § 87(2)(b)

lasted three to five seconds (Board Review 05). Police Officer Bradley also did not make a memo book entry in regard to the incident because neither he nor his partner stopped § 87(2)(b)

A search conducted by the Internal Affairs Bureau (IAB) for all Stop, Question, and Frisk Reports completed between April 3, 2018 and April 8, 2018 in the 113th Precinct did not result in any records that corresponded to the incident in question (Board Review 08).

§ 87(2)(g)

Therefore, it is recommended that **Allegations D, E, and F** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first complaint with the CCRB (Board Review 09).
- Police Officer André Edwards has been a member of the NYPD for five years and has had nine CCRB allegations against him across four cases, none of which have been substantiated. § 87(2)(g)
- Police Officer Kyle Bradley has been a member of the NYPD for ten years and has had seven CCRB allegations against him across three cases, none of which have been substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered and declined to pursue mediation at the conclusion of his in-person interview on April 9, 2018 § 87(2)(b) (Board Review 03).
- A Notice of Claim inquiry was sent to the Comptroller's Office of the City of New York on May 17, 2018 (Board Review 10). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 16

Investigator: _____

Signature

Print Title & Name

Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date